

T H E PUBLIC GENERAL STATUTES.

[26 GEO. 5. & 1 EDW. 8.]

CHAPTER 1.

An Act to divide the Government of India Act, 1935, into two portions and to make in the wording thereof certain changes which either are consequential on the division or remove minor errors; to provide for the certification, the deposit with the Rolls of Parliament, and the printing, of the said portions as if they were separate Acts of Parliament; to secure that the said portions have effect in lieu of the said Government of India Act, 1935, as from the date of the passing of that Act; and for purposes connected with the matters aforesaid.

[20th December 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) The Clerk of the Parliaments shall forthwith prepare two documents containing respectively—
- (a) a copy of the provisions of the Government of India Act, 1935, mentioned in Part I of the First Schedule to this Act, with the changes of wording mentioned in Part II of that Schedule;
 - (b) a copy of the provisions of the said Act mentioned in Part I of the Second Schedule to this Act with the changes of wording mentioned in Part II of that Schedule,

Division of
Govern-
ment of
India Act,
1935, into
two por-
tions.
25 & 26
Geo. 5. c. 42.

and shall certify each of the said documents as if it were a separate Act of the present Session and deposit

them with the Rolls of Parliament, and the said documents shall be printed as separate Acts by the Printers to His Majesty as Chapters of the statutes of the present Session, distinguished respectively by the two numbers next following the number of the Chapter assigned to this Act.

33 Geo. 3
c. 13.

(2) The date to be endorsed on the said documents by the Clerk of the Parliaments under the Acts of Parliament (Commencement) Act, 1793, shall be the second day of August, nineteen hundred and thirty-five (being the date of the passing of the Government of India Act, 1935), and the said documents shall be deemed to be Acts of Parliament which received the Royal Assent on that date, and shall have effect as such and as if the said Government of India Act, 1935, had never been passed, and anything done before the certification of the said documents under any provision of that Act to which a provision of either of the said documents corresponds shall be deemed to have been done under that corresponding provision.

(3) References in any Act or other document, to the Government of India Act, 1935 (not being references contained in this section) shall, in the absence of express provision to the contrary, be construed as references to the document mentioned in paragraph (a) of subsection (1) of this section.

Short title.

2. This Act may be cited as the Government of India (Reprinting) Act, 1935.

SCHEDULES.

FIRST SCHEDULE.

PART I.

PROVISIONS TO BE REPRINTED.

The whole Act down to the end of Part XIII;

Part XV;

The first nine Schedules;

The Sixteenth Schedule.

PART II.

1ST SCH.
—cont.

CHANGES OF WORDING.

In subsection (4) of section seventy-one, for the words “ of India ” there shall be substituted the words “ in India.”

In subsection (1) of section ninety-five, the words “ through the Chief Commissioner ” shall be omitted.

In the marginal note to section one hundred and three, for the word “ legalise ” there shall be substituted the word “ legislate.”

In subsection (2) of section two hundred and twenty-five, the comma after the word “ made ” shall be deleted and a comma shall be inserted after the word “ except.”

In section two hundred and fifty-three, after the words “ notwithstanding anything in this Act,” in both places where those words occur, there shall be inserted the words “ or the Government of Burma Act, 1935.”

In subsection (2) of section two hundred and sixty-four, the first “ that ” shall be transposed so as to follow “ (a) ”.

In subsection (2) of section two hundred and eighty-two, after the words “ the operation of this Act ” there shall be inserted the words “ or the Government of Burma Act, 1935.”

In subsection (5) of section three hundred and eleven, after the words “ the provisions of this Act ” there shall be inserted the words “ or the Government of Burma Act, 1935 ”.

Part XV shall be renumbered Part XIV.

Section four hundred and seventy-seven shall be renumbered section three hundred and twenty, and in subsection (2) thereof the words “ and referred to in Part XIV of this Act as the commencement of that Part ” shall be omitted.

Section four hundred and seventy-eight shall be renumbered section three hundred and twenty-one; and in it, for the word “ Sixteenth ” there shall be substituted the word “ Tenth,” after the words “ provisions of this Act ” there shall be inserted the words “ to the provisions of the Government of Burma Act, 1935,” and after the words “ under this Act ” there shall be added the words “ or the Government of Burma Act, 1935.”

In the Second Schedule, for the words—

“ Part XIII	-	-	-	-	The whole Part.
Part XIV	-	-	-	-	” ” ”

there shall be substituted the words—

“ Part XIII	-	-	-	-	The whole Part.”
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1ST SCH.
—cont.

and for the words—

“ Eighth Schedule	-	-	-	The whole Schedule.
Ninth Schedule	-	-	-	” ”
Tenth Schedule	-	-	-	” ”
Eleventh Schedule	-	-	-	” ”
Twelfth Schedule	-	-	-	” ”
Thirteenth Schedule	-	-	-	” ”
Fourteenth Schedule	-	-	-	” ”
Fifteenth Schedule	-	-	-	” ”
Sixteenth Schedule	-	-	-	” ”

there shall be substituted the words—

“ Eighth Schedule	-	-	-	The whole Schedule.
Ninth Schedule	-	-	-	” ”
Tenth Schedule	-	-	-	” ”

In subparagraph (2) of paragraph eleven of Part II of the Sixth Schedule, for the words “if they had been made by or on him solely” there shall be substituted the words “if they had been held or made by, or made on, him solely.”

In subparagraph (a) of paragraph three of Part IX of the Sixth Schedule, the words “in the Province” shall be omitted.

In item 39 of List I in the Seventh Schedule, for the comma after the words “as the case may be” there shall be substituted a semi-colon.

The Sixteenth Schedule shall be renumbered the Tenth Schedule, and the marginal reference to section four hundred and seventy-eight shall be altered so as to be a reference to section three hundred and twenty-one.

SECOND SCHEDULE.

PART I.

PROVISIONS TO BE REPRINTED.

Part XIV and the Tenth, Eleventh, Twelfth, Thirteenth, Fourteenth and Fifteenth Schedules.

PART II.

CHANGES OF WORDING.

At the beginning there shall be inserted the following words :

“ An Act to make further provision for the government of Burma.

Be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled; and by the authority of the same, as follows :—

2ND SCH.
—cont.

PART I.

INTRODUCTORY.

1. This Act may be cited as the Government of Short title. Burma Act, 1935."

and the words—

"PART XIV.

BURMA.

CHAPTER I.

INTRODUCTORY."

shall be omitted.

Throughout the remainder of the provisions to be reprinted :—

- (a) the sections shall be re-numbered consecutively beginning with the number 2, the Schedules shall be re-numbered I to VI, and references to those sections and Schedules shall be altered accordingly;
- (b) the chapters shall become Parts, bearing the same numbers as before, and in any reference to any of those chapters, there shall be substituted for the word "chapter," when it is immediately preceded by the word "this," the words "Part of this Act," and when it is immediately preceded by any other word, the word "Part";
- (c) for the words "this Part of this Act", "this Part of the Act" and "Part XIV of this Act" there shall, except in section four hundred and forty, be substituted the words "this Act";
- (d) for the words "if this Act had not been passed" there shall be substituted the words "if neither this Act nor the Government of India Act, 1935, had been passed."

In subsection (1) of section three hundred and twenty, after the word "exercisable," where it first occurs, there shall be inserted the words "by him."

In proviso (ii) to subsection (2) of section three hundred and twenty-two, for the words "first section of this chapter" there shall be substituted the words "last preceding section."

In paragraph (c) of subsection (2) of section three hundred and ninety-two and in subsection (6) of section four hundred and fifty-one, for the words "by this Act" there shall be substituted the words "by the Government of India Act, 1935,".

2ND SCH.
—cont.

In subsection (1) of section four hundred and thirty-four, for the words “ coming into operation ” there shall be substituted the word “ commencement.”

In section four hundred and thirty-six, for the words “ the provisions of this Act relating to India,” there shall be substituted the words “ the Government of India Act, 1935.”

In section four hundred and forty-six, after the words “ so far as consistent with this Act ” there shall be inserted the words “ and the Government of India Act, 1935.”

In section four hundred and fifty-two, after the words “ this Act ” there shall be inserted the words “ and the Government of India Act, 1935.”

In subsection (1) of section four hundred and seventy-six, after the definition of “ British Burma ” there shall be inserted the following words :—

“ ‘ Secretary of State in Council ’ means Secretary of State in Council of India ; ”

and after the definition of “ existing Indian or Burman law ” there shall be inserted the following words :—

“ ‘ goods ’ includes all materials, commodities and articles ;

“ ‘ Governor-General in Council ’ means Governor-General of India in Executive Council.”

In subsection (3) of section four hundred and seventy-six, for the words “ Part XII of this Act ” there shall be substituted the words “ Part XII of the Government of India Act, 1935,” and for the words “ the provisions of this Act ” there shall be substituted the words “ the provisions of that Act and this Act.”

In subsection (5) of section four hundred and seventy-six, for the words “ Part III of this Act ” there shall be substituted the words “ Part III of the Government of India Act, 1935.”

After subsection (5) of section four hundred and seventy-six, there shall be inserted the following subsection :—

“ (6) While any such agreement as is mentioned in section forty-seven of the Government of India Act, 1935, is in force, any reference in this Act to subjects of His Majesty shall be deemed to include a reference to Berari subjects of His Exalted Highness the Nizam of Hyderabad.”

At the end of section four hundred and seventy-six there shall be added the following section :—

“ 159. This Act shall, subject to any express provision to the contrary, come into force on such date as His Majesty in Council may appoint under the Government of India Act, 1935, as the date of the commencement of Part III of that Act :

Commence-
ment.

Provided that if it appears to His Majesty in Council that it will not be practicable or convenient that all the provisions of this Act shall come into operation simultaneously on that date, His Majesty in Council may fix an earlier or a later date for the coming into operation, either generally or for particular purposes, of any particular provisions of this Act."

2ND SCH.
—cont.

In sub-paragraph (1) of paragraph twelve of the Twelfth Schedule, for the words "the Acts repealed by this Act" there shall be substituted the words "the Acts repealed by the Government of India Act, 1935."

CHAPTER 2.

An Act to make further provision for the government of India. [2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I

INTRODUCTORY.

1. This Act may be cited as the Government of India Act, 1935.

2.—(1) All rights, authority and jurisdiction heretofore belonging to His Majesty the King, Emperor of India, which appertain or are incidental to the government of the territories in India for the time being vested in him, and all rights, authority and jurisdiction exercisable by him in or in relation to any other territories in India, are exercisable by His Majesty, except in so far as may be otherwise provided by or under this Act, or as may be otherwise directed by His Majesty :

Government
of India
by the
Crown.

Provided that any powers connected with the exercise of the functions of the Crown in its relations with Indian States shall in India, if not exercised by His Majesty, be exercised only by, or by persons acting under the authority of, His Majesty's Representative for the exercise of those functions of the Crown.